

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

SHIRLEY LOUISE GALE, Respondent

Agency Case No. 2-407218474

OAH Case No. 2024070667

PROPOSED DECISION

Wim van Rooyen, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter on January 14 and 15, 2025, from Sacramento, California.

Brent O. Jex, Deputy Attorney General, represented complainant Mary Vixie Sandy, Ed.D., Executive Director of the California Commission on Teacher Credentialing (Commission).

Andrea Price, Attorney at Law, represented respondent Shirley Louise Gale.

Evidence was received, the record closed, and the matter submitted for decision on January 15, 2025.

On February 10, 2025, the record was reopened until March 13, 2025, to allow the parties to submit supplemental briefs concerning the potential imposition of probation conditions. On March 11, 2025, respondent submitted her supplemental

brief, marked as Exhibit W. On March 12, 2025, complainant submitted a letter, indicating that she declined to file any supplemental brief, marked as Exhibit 20.

On March 13, 2025, Exhibits 20 and W were admitted as argument, the record was closed, and the matter was resubmitted for decision.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent holds or has held multiple credentials and certificates from the Commission (collectively, "Teaching Credentials").

Specifically, on January 10, 2001, the Commission issued respondent an Emergency 30-Day Substitute Permit, which expired on February 1, 2003, was reissued on July 29, 2003, and again expired on August 1, 2004.

On May 13, 2004, the Commission issued respondent a Preliminary Multiple Subject Teaching Credential, which expired on June 1, 2009.

On January 18, 2009, the Commission issued respondent a Level I Education Specialist Instruction Credential, which expired on February 1, 2014.

On May 21, 2009, the Commission issued respondent a Clear Multiple Subject Teaching Credential, which will expire on August 1, 2029, unless renewed.

On October 1, 2013, the Commission issued respondent a Clear Education Specialist Instruction Credential, which will expire on October 1, 2028, unless renewed.

2. On December 13 through 15, 2023, the Commission's Committee of Credentials determined probable cause existed to take adverse action against respondent's Teaching Credentials based on allegations of repeated unnecessary physical contact with students and other unprofessional conduct during the 2021-2022 school year. Respondent timely requested an administrative hearing.

3. On May 9, 2024, complainant, in her official capacity, signed an Accusation seeking to discipline respondent's Teaching Credentials based on unprofessional conduct, evident unfitness for service, immoral conduct, and acts of moral turpitude. The Accusation further alleged matters in aggravation, including that respondent had previously resigned her employment at the Sutter County Superintendent of Schools Office (Sutter County) while allegations of misconduct were pending for using inappropriate physical force with students. Respondent filed a Notice of Defense to the Accusation. This hearing followed.

Incidents During the 2021-2022 School Year

4. During the 2021-2022 school year, respondent was employed as a special education teacher by the Washington Unified School District (District) at Riverbank Elementary School (RES) in West Sacramento, California. She taught a specialized day class of students in grades three through five, ages 8 to 10 years old. At hearing, complainant offered documentary evidence; the testimony of two experienced paraeducators who worked in respondent's classroom, Michaela Taylor and Katelyn Pratt; and the testimony of RES's principal, Kristen Rodriguez, concerning several

incidents involving RES students. The following incidents were established by clear and convincing evidence.¹

5. On multiple occasions from August through October 2021, respondent made derogatory comments about student C² in front of other students. Those included statements like: "it's going to be a great day, [student C] isn't here today, woo!"

6. Student B had a history of eloping. At the end of August or beginning of September 2021, student B eloped from respondent's classroom and was missing for approximately 10 minutes. When Ms. Taylor asked respondent whether she had called student B in as missing through the school's walkie-talkie system, respondent stated that she was too embarrassed to report student B missing.

7. In September 2021, respondent knew that student J2 wore headphones as part of his Individual Education Plan (IEP), with a goal for student J2 to withstand 10 minutes of the day without headphones. On one occasion in September 2021, respondent tried to take student J2's headphones off his head. When respondent was unable to do so, she forcibly removed student J2's headphones in a "tug-of-war fashion," causing student J2 to become visibly upset.

¹ The remaining allegations in the Accusation were not established by clear and convincing evidence.

² The decision refers to students by alphabet designation to protect their privacy and confidentiality.

8. On October 18, 2021, respondent was at a table working with students. Student H was supposed to be writing but was off task. Respondent grabbed student H's hand in a technique called "hand-over-hand" to redirect her, but student H cried out, "Ouch!" and "Teacher! Teacher!"

9. On October 18, 2021, student I was staring away from her work. Respondent redirected student I's gaze to student I's work by using respondent's hand to move student I's head down to the table.

10. On October 25, 2021, student J1 was off task and had moved away from his work and was standing away from his desk in the classroom. Respondent grabbed J1 and brought him back to a table where respondent was working with other students. Respondent held J1 to his seat and then turned her back on him. J1 hit respondent's arm, and respondent turned around and grabbed J1 and yelled in his face. Respondent turned her back on J1, and when he hit respondent's arm again, respondent turned around, grabbed J1 by his arms, and yelled at him again. Multiple staff members reported bruising on J1's arms.

11. Ms. Rodriguez had been a teacher for eight years and served as an administrator for 19 years before she became the principal at RES. Based on her professional experience, she opined that respondent's interactions with vulnerable special needs students likely made them uncomfortable, caused them distress, caused their behaviors to escalate, and created an element of fear and mistrust in the classroom.

12. On October 26, 2021, the District placed respondent on paid administrative leave. In April 2022, she returned to working at the District as a long-

term substitute teacher at another school. She then resigned her position at the District, effective June 2, 2022.

Matters in Aggravation

13. Around 2012, respondent resigned her employment at Sutter County while allegations of misconduct were pending for using inappropriate physical force with students. Once notified, the Commission investigated. In a November 7, 2013 letter to the Commission, respondent indicated that she had been diagnosed with bipolar disorder, which caused some of the issues at work. However, she had since been successfully treated through medication management by a psychiatrist and counseling, and she had achieved stability and wellness. The Commission ultimately closed its case and did not impose any discipline.

Respondent's Evidence

14. Respondent testified at hearing. She also offered the testimony of third-party witnesses and extensive documentary evidence, including letters of support and a fitness for duty evaluation.

RESPONDENT'S TESTIMONY

15. Respondent became a teacher because she loves teaching children. She enjoys the challenge and the process of getting children to "aha moments."

16. Respondent acknowledged her resignation from Sutter County around 2012. At the time, she was diagnosed with bipolar disorder II and severe depression by Richard Sanchez, M.D., a psychiatrist. Once she started medication and counseling, her symptoms improved, and she stabilized. She was able to resume teaching without any issues. Respondent continued her treatment with Dr. Sanchez until 2015 when he was

no longer covered by her insurance. However, her primary care nurse practitioner (NP) continued to prescribe respondent her medications.

17. In July 2021, respondent's symptoms returned. She experienced mood swings and severe depression, anxiety, and a general feeling of being overwhelmed. She became moody and reactive, short-tempered, and very easily frustrated.

18. In August 2021, respondent saw her primary care NP and reported her symptoms. The NP told her to just watch her symptoms to make sure they did not get worse.

19. Respondent's symptoms increased during the school year. She became more and more stressed in the classroom and felt completely overwhelmed. Some of the students in her classroom had violent behaviors, which she found especially triggering. She also felt that some of the paraeducators did not like her, would huddle in groups and talk about her, and would not comply with her instructions about when to take breaks. In hindsight, respondent should have taken a leave of absence. However, she was not thinking clearly at the time because she was constantly in "fight or flight" mode.

20. Respondent acknowledged making disparaging remarks about student C to the paraeducators while outside waiting for the children to get off the school bus. Student C's behaviors were "really big and constant," constantly requiring redirection or intervention. It was always a high-stress day when he was at school. Respondent does not believe other children could hear her remarks. Nonetheless, she strongly regrets making those inappropriate comments. She would never do that today.

21. Respondent recalls the incident when student B eloped. At the time, she thought that one of the paraeducators had taken him to the toilet. When she learned

that he was missing, she asked the paraeducators to go looking for him. Today, she would immediately call the school office as well.

22. Respondent recalls removing student J2's headphones against his will, making him very upset and agitated. She did so to comply with his IEP; not to punish or upset him. However, she believes she could have been gentler and more patient with student J2. She would handle the situation differently today.

23. Respondent admits the incident with student H. Student H had refused to do her work, and respondent had unsuccessfully given her several verbal prompts. Respondent then decided to use the "hand-over-hand" method. Respondent did not squeeze student H's hand, but student H did say, "Ouch teacher." Upon hearing that, respondent immediately released student H's hand. Respondent was not attempting to punish or discipline student H; she was attempting to redirect her. Today, respondent would no longer use the "hand-over-hand" method. She would give the student more time, take a break, or attempt to use physical reinforcers like candy or toys.

24. Respondent admits the incident with student I. Respondent put her hands on either side of student I's head and directed it down towards the table. Student I's head never touched the table. Respondent did not do this to punish or discipline student I, but merely to redirect her to her work. Today, respondent would never put her hands on a student. Instead, she would instruct the student to "follow my hand or follow my eyes."

25. Respondent also acknowledges the incident with student J1. Student J1 had repeatedly hit respondent despite several admonitions to stop hitting. Respondent became very agitated. She does not recall putting her hands on student J1 but does not deny it. She thinks she has no memory of it because she was in such an

“escalated state.” No one showed her the bruises on student J1 that day. When she subsequently learned of the bruising, she was shocked and horrified. Today, she would handle the situation very differently. She would follow his behavior plan, give him more time to comply, and/or ask other staff for assistance.

26. When the District placed respondent on paid administrative leave, she looked for a psychiatrist and eventually found an emergency appointment with Jehan F. Helmi, M.D. Dr. Helmi concluded that respondent’s previous medications were no longer working, placed her on medical leave, and titrated down the previous medications. He then trialed her on new medications until they found medications that were effective. Respondent again stabilized and returned to work at the District in April 2022. There were no complaints about her work performance until she resigned her position with the District in June 2022.

27. When Dr. Helmi left the practice, respondent started treatment with psychiatric NP Nnaemeka Anosike on August 9, 2022. He sees her every two to three months and manages her medications. Respondent also receives counseling from Mark Stelzner, LMFT.³ Respondent is stable and doing very well on her treatment regimen. She also has a great support system in her husband, family, and good friends.

28. Respondent now vigilantly monitors her mental state. If symptoms were to recur, she would immediately seek treatment and take a leave of absence if necessary.

29. For the 2022-2023 school year, respondent taught a transitional kindergarten class for children with autism at the Twin Rivers Unified School District.

³ LMFT is an abbreviation for Licensed Marriage and Family Therapist.

She described it as “the hardest class I ever taught.” The children had severe issues with lots of problematic behavior. She also had inadequate staff support. Nevertheless, she successfully finished the school year without issues.

30. Since the fall of 2023, respondent has been teaching a special education class of seventh and eighth graders at Douglas Middle School in the Woodland Joint Unified School District (WJUSD). The students are challenging, but respondent enjoys the work. Some of her students can be assaultive, but she now gives them space and time, sensory breaks, and lots of positive reinforcement. She works gently with them and gives them a lot of one-on-one time. She has never had to restrain a student.

31. Respondent has never been the subject of any complaints or work discipline at WJUSD. She offered 2023 and 2024 performance evaluations, including multiple teaching observations by the vice principal, that show she meets or exceeds expectations. The most recent evaluation was in December 2024.

32. Respondent hopes to continue teaching her current class for the foreseeable future. She is passionate about teaching and strongly desires to retain her Teaching Credentials. She is willing to comply with any probationary conditions or restrictions the Commission deems appropriate.

THIRD PARTY WITNESS TESTIMONY AND LETTERS OF SUPPORT

33. Mr. Anosike testified at hearing. He has been respondent’s treating psychiatric provider for the past two to three years. He sees her every two to three months, she takes her medications as prescribed, and she is currently stable and doing well on her treatment regimen.

34. Mr. Stelzner testified at hearing. He has been respondent's counselor since August 2022. He began seeing her on a weekly basis because she needed significant support in navigating her bipolar disorder, depression, and anxiety. However, she has stabilized on her medications and made significant progress in coping with stress and anxiety during counseling. In October 2023, they mutually agreed to reduce counseling sessions to every other week. She consistently attends her appointments. Mr. Stelzner has no current concerns about respondent's fitness to teach.

35. Carol Cantrell and Laura Brickner, both experienced paraeducators with the WJUSD who currently work with respondent, wrote letters in support of respondent and testified at hearing. Both witnesses described respondent as a competent teacher who is knowledgeable, follows the students' IEPs and behavior plans, and is attentive to the students' needs. The witnesses have never seen her physically restrain a student, lose her temper with students, get overwhelmed or unduly frustrated, yell at students, or otherwise engage inappropriately with students. Respondent is well liked by both students and staff. They have no concerns about her fitness to teach.

36. Respondent offered letters of support from three friends – Chayne Pascua, Kimberley McLaughlin, and Kim Miller-Aitkens. The authors are aware of the pending Accusation but nonetheless attest to respondent's kindness, compassion, selflessness, and dedication to teaching.

FITNESS FOR DUTY EVALUATION

37. As part of the investigation preceding the Accusation, respondent was required to undergo a psychiatric examination by Jessica Ferranti, M.D. Dr. Ferranti

evaluated respondent on September 29, 2023, and prepared an evaluation report dated October 23, 2023. Dr. Ferranti concluded that respondent was fit to perform the duties of her Teaching Credentials.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving the existence of grounds for disciplining respondent's credentials by clear and convincing evidence to a reasonable certainty. (*Daniels v. Dept. of Motor Vehicles* (1983) 33 Cal.3d 532, 536 ["When an administrative agency initiates an action to suspend or revoke a license, the burden of proving the facts necessary to support the action rests with the agency making the allegation."]; *Gardener v. Comm'n on Professional Competence* (1985) 164 Cal.App.3d 1036, 1039-1040 [recognizing that the clear and convincing evidence standard applies to proceedings to discipline a teacher's credential, whereas the lesser preponderance of the evidence standard applies to proceedings to dismiss a teacher from particular employment].) "The courts have defined clear and convincing evidence as evidence which is so clear as to leave no substantial doubt and as sufficiently strong to command the unhesitating assent of every reasonable mind. [Citations.] It has been said that a preponderance calls for probability, while clear and convincing proof demands a *high probability* [citations]." (*In re Terry D.* (1978) 83 Cal.App.3d 890, 899; italics original.)

Cause for Discipline

2. The Accusation seeks to discipline respondent's Teaching Credentials based on unprofessional conduct, evident unfitness for service, immoral conduct, and acts of moral turpitude. Each cause is addressed separately below.

UNPROFESSIONAL CONDUCT

3. The Commission may discipline a credential for unprofessional conduct. (Ed. Code, § 44421.) The term "unprofessional conduct" is not defined by the Education Code. Nevertheless, the California Supreme Court has held the term may be construed consistent with common usage as conduct that "violates the rules or ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing." (*Bd. of Education of the City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 553.)

4. Complainant established by clear and convincing evidence that respondent made derogatory comments about a student in front of other students; failed to timely report a student missing due to embarrassment; forcibly removed a student's headphones in a "tug-of-war fashion"; grabbed a student's hand to the extent it caused the student pain; redirected a student's gaze to her work by using respondent's hand to move the student's head down to the table; and yelled at a student and grabbed him by the arms, resulting in bruising. Such actions violate the ethical rules of the teaching profession and are unbecoming a teacher in good standing. Thus, cause exists to discipline respondent's Teaching Credentials for unprofessional conduct under Education Code section 44421.

EVIDENT UNFITNESS FOR SERVICE

5. The Commission may discipline a credential for evident unfitness for service. (Ed. Code, § 44421.) The term "evident unfitness for service," means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified Sch. Dist. v. Com. on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) The term "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

6. Here, respondent's behavior during the 2021-2022 school year suggests that she may have temperamental defects or inadequacies rendering her unsuitable for teaching. However, these behaviors occurred during a period when her mental health was poor and uncontrolled by her medication. The weight of the evidence also shows that when her mental health is well controlled through medication and therapy, she is an excellent teacher. In sum, complainant has not established by clear and convincing evidence that respondent has an irremediable, fixed character trait rendering her unfit to teach. Thus, cause does not exist to discipline respondent for evident unfitness to teach under Education Code section 44421.

IMMORAL CONDUCT

7. The Commission may discipline a credential for immoral conduct. (Ed. Code, § 44421.) Immoral conduct is defined as conduct that:

is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness;

or as wil[ly]ful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

(*Bd. of Ed. of San Francisco Unified Sch. Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811; see also *San Diego Unified Sch. Dist. v. Com. on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

8. Moreover, the definition of immoral conduct “must be considered in conjunction with the unique position of public school teachers, upon whom are imposed responsibilities and limitations on freedom of action which do not exist in regard to other callings.” (*San Diego Unified Sch. Dist., supra*, 194 Cal.App.4th at p. 1466.) A teacher is often described as “an exemplar, whose words and actions are likely to be followed by the children coming under [the teacher’s] care and protection.” (*Palo Verde Unified Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 970.)

9. Complainant established by clear and convincing evidence that respondent engaged in immoral conduct. At a minimum, respondent’s yelling at student J1 and grabbing him by the arms, resulting in bruising, constitutes flagrant conduct that was harmful to student J1, hostile to the welfare of the general public, and contrary to good morals. Thus, cause exists to discipline respondent for immoral conduct under Education Code 44421.

ACTS OF MORAL TURPITUDE

10. The Commission may discipline a credential for any cause that would have warranted denial of an application for a credential or renewal of that credential, including acts of moral turpitude. (Ed. Code, §§ 44345, subd. (e), & 44421.)

11. "Moral turpitude is a concept that 'defies exact description' [citation] and 'cannot be defined with precision' [citation]." (*In re Grant* (2014) 58 Cal.4th 469, 475-476.) "Our Supreme Court has defined moral turpitude as 'an act of baseness, vileness or depravity in the private and social duties which a man owes to his fellowmen, or to society in general, contrary to the accepted and customary rule of right and duty between man and man.' [Citation.] Moral turpitude has also been described as any crime or misconduct committed without excuse, or any 'dishonest or immoral' act not necessarily a crime. [Citation.] The definition depends on the state of public morals and may vary according to the community or the times, as well as on the degree of public harm produced by the act in question. [Citation.]" (*Clerici v. Department of Motor Vehicles* (1990) 224 Cal.App.3d 1016, 1027; see also *Ricasa v. Office of Administrative Hearings* (2018) 31 Cal.App.5th 262, 281; *Golde v. Fox* (1979) 98 Cal.App.3d 167, 185.) Moral turpitude has also been described as the "'general readiness to do evil.' [Citation.]" (*Donley v. Davi* (2009) 180 Cal.App.4th 447, 458.)

12. Complainant failed to establish by clear and convincing evidence that respondent engaged in acts of moral turpitude. To be sure, respondent's yelling at student J1 and grabbing him by the arms, resulting in bruising, constitutes immoral conduct. However, she did not engage in such immoral conduct out of baseness, vileness, or depravity, nor due to a general readiness to do evil. The weight of the evidence shows that respondent's behavior resulted from her poor mental health at the time, which was uncontrolled by her medication. Although this does not excuse the immoral behavior, it does not meet the definition of an act of moral turpitude as outlined in the above case law. Thus, cause does not exist to discipline respondent's Teaching Credentials for acts of moral turpitude under Education Code sections 44345, subdivision (e), and 44421.

Propriety of Discipline Under the *Morrison* Factors

13. Even when cause for discipline exists, complainant must also demonstrate that discipline is appropriate because there is a factual nexus between respondent's misconduct and unfitness to teach. (*Morrison v. State Bd. of Education* (1969) 1 Cal.3d 214, 299.) In *Morrison*, the California Supreme Court provided a list of factors for assessing a person's fitness to teach. The inquiry includes (1) the likelihood the conduct may have adversely affected others and the degree of such adversity anticipated; (2) the proximity or remoteness in time of the conduct; (3) the type of certification held by the party involved; (4) the extenuating or aggravating circumstances, if any, surrounding the conduct; (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (6) the likelihood of the recurrence of the questioned conduct; and (7) the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers.

14. "The [*Morrison*] factors are not rules, but broad classes of issues to be considered to assist in determining whether to impose discipline. Only the relevant factors need to be analyzed." (*Ricasa v. Office of Admin. Hearings* (2018) 31 Cal.App.5th 262, 285.) The factors may apply to all charges in the aggregate, considering the totality of offensive conduct. (*Woodland Joint Unified Sch. Dist., supra*, 2 Cal.App.4th at pp. 1456–1457 ["When a camel's back is broken we need not weigh each straw in its load to see which one could have done the deed."].)

LIKELIHOOD OF ADVERSE IMPACT AND DEGREE OF ADVERSITY

15. As noted above, respondent made derogatory comments about a student in front of other students; failed to timely report a student missing due to

embarrassment; forcibly removed a student's headphones in a "tug-of-war fashion"; grabbed a student's hand to the extent it caused the student pain; redirected a student's gaze to her work by using respondent's hand to move the student's head down to the table; and yelled at a student and grabbed him by the arms, resulting in bruising.

16. Ms. Rodriguez credibly testified that respondent's actions likely made the students uncomfortable, caused them distress, caused their behaviors to escalate, and created an element of fear and mistrust in the classroom. Some of the students also suffered pain due to respondent's improper physical contact. Additionally, respondent's failure to timely report a student missing placed that student at risk of harm. Thus, the likelihood of adverse impact and degree of adversity are high.

PROXIMITY OR REMOTENESS IN TIME

17. Respondent's actions occurred in the 2021-2022 school year. Thus, they are relatively recent.

TYPE OF CERTIFICATION HELD

18. Respondent holds multiple credentials. At the time of the events in question, she was working as a special education teacher. Respondent's actions at the time demonstrated an inability to self-regulate and exercise self-control, which is particularly troubling when teaching vulnerable special needs students.

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

19. An extenuating factor is that respondent's behavior was driven not by malice, but by her poor mental health during the 2021-2022 school year. In hindsight, she acknowledges she should have taken a leave of absence.

20. An aggravating factor is that respondent in 2012 resigned her employment at Sutter County while allegations of misconduct were pending for using inappropriate physical force with students. Respondent admitted she was subsequently diagnosed with bipolar disorder, which caused her behavior and was then successfully treated with medication and counseling. Thus, respondent was aware that she had a mental health condition that required monitoring.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

21. Respondent's behavior in the 2021-2022 school year was not motivated by any praiseworthy motives. The weight of the evidence shows that the behavior was caused by her poor mental health that was uncontrolled through medication.

LIKELIHOOD OF RECURRENCE

22. The conduct at issue in this case is the second instance where respondent engaged in misconduct at work attributable to her mental health condition. However, the first instance occurred before her initial diagnosis. The second instance at issue in this case constituted a recurrence following poor medication control. At hearing, respondent displayed good insight and credibly testified that she now vigilantly monitors her mental health. She would immediately seek help and take a leave of absence if her mental health condition were to decline again in the future. Thus, the likelihood of recurrence is low.

ADVERSE IMPACT OR CHILLING EFFECT UPON CONSTITUTIONAL RIGHTS

23. The conduct at issue in this case does not involve the exercise of any constitutional rights.

CONCLUSION

24. When all the *Morrison* factors are considered, complainant demonstrated by clear and convincing evidence that there is a factual nexus between respondent's conduct in the aggregate and unfitness to teach. Thus, the imposition of discipline is appropriate. The only remaining question is the degree of discipline.

Appropriate Degree of Discipline

25. Under Education Code section 44421, the disciplinary options are private admonishment, public reproof, suspension, or revocation. The purpose of licensing proceedings is not punishment, but to protect the public. (*Fahmy v. Medical Board of California* (1995) 38 Cal.App.4th 810, 817.)

26. Cause exists to discipline respondent's credentials for the reasons explained above. However, revocation is unnecessary to protect the public interest. The psychiatrist appointed by complainant to examine respondent concluded that respondent was fit to perform the duties of her Teaching Credentials. Additionally, respondent's psychiatric provider and counselor opined that respondent is presently stable and doing well on her current treatment regimen. They have no concerns about her fitness to teach. At hearing, respondent demonstrated good insight and credibly testified that she now vigilantly monitors her mental health. If mental health symptoms were to recur, she would immediately seek treatment and take a leave of absence if necessary. Respondent's testimony is further supported by her excellent performance as a special education teacher in the WJUSD over the past couple of years.

27. Given respondent's present mental health and work performance, a suspension would not serve the public interest. A stayed revocation or suspension with imposition of probation has been considered, but the Commissioner presently has no

disciplinary guidelines outlining specific probation conditions. Additionally, complainant declined to submit any supplemental briefing concerning plausible probation conditions.

28. When the record as a whole is considered, the appropriate discipline is a public reproof. "'Public reproof' is a public warning from the Commission that conduct is not appropriate for a credential holder or applicant. Following a public reproof, commission of the same or similar misconduct may result in more serious adverse action." (Cal. Code Regs., tit. 5, § 80300, subd. (p).) Additionally, unlike a private admonishment, a public reproof puts potential employers and the public on notice of respondent's past unprofessional conduct, which further serves the public protection interest.

ORDER

Respondent Shirley Louise Gale and her Teaching Credentials (the expired Emergency 30-Day Substitute Permit, expired Preliminary Multiple Subject Teaching Credential, expired Level I Education Specialist Instruction Credential, Clear Multiple Subject Teaching Credential, and Clear Education Specialist Instruction Credential) are PUBLICALLY REPROVED.

DATE: March 20, 2025

Wim vanRooyen

WIM VAN ROOYEN

Administrative Law Judge

Office of Administrative Hearings